

26STCV02259 26STCV02259

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-13

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Case Number: 26STCV02259 Hearing Date: August 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 13, 2026

Case Name: Mallen, et al. v. Martplan

Insurance Agency, Inc., et al.

Case

No.: 26STCV02259

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants Martplan

Insurance Agency, Inc. and Christina Wyant

Responding Party: Plaintiffs Blake Mallen, Karis Mallen,
and Bailey's LLC

Tentative

Ruling: Defendants Martplan

Insurance Agency, Inc. and Christina Wyant's demurrer is sustained.

Defendants

Martplan Insurance Agency, Inc. and Christina Wyant's motion to strike is rendered
moot.

Plaintiffs

Blake Mallen, Karis Mallen, and Bailey's LLC ("Plaintiffs") filed this action against Defendants Martplan Insurance Agency, Inc., Christina Wyant ("Wyant") (collectively "Defendants"), and Does 1 through 10. The First Amended Complaint ("FAC") alleges three causes of action for: (1) negligence; (2) negligent representation; and (3) fraudulent representation.

Defendants

demur to Plaintiffs' third cause of action for failure to allege sufficient facts. Defendants also move to strike the prayer for punitive damages. Plaintiffs oppose.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by

an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendants

contend that the parties met and conferred over the telephone. (Suh Decl., ¶ 4.) Thus, the parties fulfilled their statutory meet-and-confer obligations.

Preliminary

Issues

As

an initial matter, the Court notes that Defendants reserved this Court hearing only as a motion to strike. The Court advises the parties that, moving forward, they must ensure they reserve the correct reservation slot required for their respective motions. The Court cannot allow parties to bypass the Court’s reservation system to have their motions heard at an earlier date, nor can the Court accommodate such requests out of error by the parties. However, in this situation, because Plaintiffs have not opposed the demurrer on this basis and at this time the Court has the capacity to hear the demurrer, the Court will exercise its discretion to hear both motions.

Demurrer

Defendants

demur to Plaintiffs’ third cause of action for failure to allege sufficient facts.

““The

elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 (Lazar).) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (Id. at p. 645.) “Section 525 of the Restatement Second of Torts states: ‘One who fraudulently makes a misrepresentation of fact, opinion, intention or law for the purpose of inducing another to act or to refrain from action in reliance upon it, is subject to liability to the other in deceit for pecuniary loss caused to him by his justifiable reliance upon the misrepresentation.’” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 174.) “Every element of the cause of action for fraud must be alleged in the proper manner (i.e., factually and specifically), and the policy of liberal construction of the pleadings ... will not ordinarily be invoked to sustain a pleading defective in any material respect.” (Committee On Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 216.)

Defendants

argue that the FAC fails to allege facts sufficient to establish that they knowingly made false misrepresentations or acted with the intent to deceive Plaintiffs, and the FAC lacks specificity.

The FAC

alleges that Wyant told Plaintiffs that their home was “too high to insure” under the California FAIR plan. (FAC, ¶ 21.) Plaintiffs further allege that Wyant's prior statement was false because they purchased a subsequent house and were able to purchase a property in the same neighborhood and purchased a FAIR plan. (Id. at ¶ 45.) Plaintiffs allege that Wyant made a false representation “without verifying it,” but also that she has actual or constructive knowledge of their eligibility as an insurance professional. (Id. at ¶ 54.)

In

opposition, Plaintiffs contend that every element for their cause of action is alleged. As an initial matter, Plaintiffs rely on Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, to support their claim that assertions without regard for the truth satisfy the scienter element of fraud. However, the Court finds their reliance on Engalla in inapplicable. The

court in *Engalla* addressed false representations in the scope of arbitration agreements. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 973.) But in *Bily*, the Court stated that “[i]f the defendant has no belief in the truth of the statement, and makes it recklessly, without knowing whether it is true or false, the element of scienter is satisfied.” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 414.)

Plaintiffs

argue that they allege that Wyant made the misrepresentation without taking any steps to verify it. (FAC, ¶ 54.) However, while allegations of scienter are alleged, Plaintiffs do not allege facts to support the element that Wyant intended to induce reliance or intent deceive Plaintiffs. Plaintiffs contend that Defendants intended to refrain Plaintiffs from taking an action upon reliance of Wyant’s assertion. However, this argument is unclear as to how the alleged statement regarding coverage fulfilled the intent element. The FAC alleges that Wyant was working with Plaintiffs to help find coverage; the Court is not persuaded by Plaintiff’s allegations that the FAC alleges sufficient facts for a viable cause of action. Moreover, the FAC is also conclusory, and depends on allegations that do not support its cause of action, but instead served more as evidentiary assertions. (See FAC, ¶¶45-46.)

Defendants

state that the FAC is not clear as to how “Defendant Martplan would be liable for fraudulent misrepresentation along with Defendant Wyant.” (Mot., 8:23-25.) However, Defendants do not provide further support for this assertion. The Court will not address this assertion, as the burden of proof is on Defendants to make their argument.

Thus, the

demurrer is sustained as to the third cause of action.

Motion

to Strike

Defendants

move to strike the prayer for punitive damages as to Plaintiff’s third cause of action.

Because the

demurrer has been sustained to the third cause of action, the motion to strike

is rendered moot.

Leave to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court finds that Plaintiffs have presented the Court with sufficient basis to grant leave to amend. Plaintiffs will be given the opportunity to amend.

Conclusion

Defendants Martplan Insurance Agency, Inc. and Christina Wyant’s demurrer is sustained.

Defendants Martplan Insurance Agency, Inc. and Christina Wyant’s motion to strike is moot.

Plaintiffs

shall have leave to amend and must file an amended complaint by September 14, 2026.